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File No.: EXP202303477

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On August 11, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against C.C.C. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202303477

### AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 23, 2023. The complaint is directed against the entity C.C.C. with NIF H.H.H. (hereinafter, the respondent). The reasons on which the complaint is based are as follows: The complainant states that they are responsible for a business adjacent to a premises of the respondent and that the latter has installed cameras in its facilities that, due to their location and orientation, are capable of capturing images of the complainant's establishment and its access points, without having authorization for this.

They provide images of the camera locations and the affected areas (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on March 15, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was responded to on April 17, 2023, although a request for rectification was made as the system in question was not duly legalized.

THIRD: On June 14, 2023, a new written response was received from the respondent at the request of this Agency stating the following:

- The number of cameras is 15; we attach photographs of the cameras, as well as a photograph of the monitor where they are displayed.
- We provide photographs of the signs that warn of the existence of a video-surveilled area.
- We are connected to the Alartec Alarm Center.

FOURTH: On May 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

### LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this

organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the actions will be archived.

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II

In the present case, we proceed to examine the claim dated 23/02/23, through which the following is conveyed: "installation of cameras that process personal data of your establishment and clients" without justified cause for it.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory information sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, with such devices, images of public space cannot be obtained, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their free transit area.

III

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the claimed party has a video surveillance system that could affect the rights of third parties.

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years" and particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts could constitute an infringement, attributable to the claimed party, for violating the content of Article 5.1 c) of the GDPR, as previously mentioned.

#### IV

After analyzing the facts subject to transfer, it is confirmed that the devices are oriented outside the boundaries of the claimed entity, without the presence of the necessary information indicating that it is a , being this an aspect on which this Agency has required the correction of the initial documentation. Article 22, paragraph 4 of the LOPDGDD states: “The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing a D.D.D. in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the D.D.D.”

The previously described facts may imply an infringement of the content of Article 13 of the GDPR, due to the lack of informative sign(s) with an effective address to which one could address or indicate, if applicable, the main responsible party for the processing of the data.

Article 13 of the GDPR “Information to be provided when personal data are obtained from the data subject”

1. When personal data relating to a data subject are obtained from the data subject, the data controller shall provide all the information indicated below at the time the data are obtained: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall prescribe after three years” and particularly the following:

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h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

#### V

Article 83.5 of the GDPR states the following: “Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).”

When justifying the sanction, it is taken into account that the device(s) is installed in an area that suggests a disproportionate impact on the rights of third parties, considering the conduct as grossly negligent in relation to the facts presented, which justifies an initial proposed sanction of €1000 (€500 + €500), a sanction situated at the lower end of the scale for this type of conduct, given that there are two alleged violations of the current regulations.

#### VI

If the violation is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in Articles 83.5 and 83.6, which could lead to the initiation of

further administrative sanctioning proceedings.

The summoned party must provide a screenshot (date and time) of all installed cameras, properly marked, the photographs of the signs must indicate where they are installed and allow for their content to be appreciated through clear photograph(s), as well as state what they deem appropriate in law.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity C.C.C., with NIF H.H.H., for the alleged violation of Article(s) 5.1c) and 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR.

SECOND: TO APPOINT F.F.F. as the instructor and E.E.E. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €1000 (€500 + €500), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to C.C.C., with NIF H.H.H., granting a hearing period of ten working days for them to formulate allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as provided in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €800, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €800, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €600.

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the

withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above, €800 or €600, you must make the payment by depositing it into account no. A.A.A.) opened in the name of the Spanish Agency for Data Protection at the banking entity G.G.G., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

Furthermore, you must send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On August 22, 2023, the respondent has proceeded to pay the sanction in the amount of €600, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative pathway against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

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Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

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In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303477, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER C.C.C. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to C.C.C.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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